

Court No. - 32

Case :- WRIT - C No. - 41518 of 2019

Petitioner :- Anil Kumar Nayak

Respondent :- State Of U P And 3 Others

**Counsel for Petitioner :- Ravindra Prakash
Srivastava**

**Counsel for Respondent :- C.S.C.,Mahboob
Ahmad**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Shamim Ahmed,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

" Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate dated 11.09.2019 issued by respondent No. 3 against the petitioner to the tune of Rs. 7,26,189/- +others (Annexure-2 to the writ petition)."

Heard learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the

U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within two weeks from today by filing a fresh application/objection, his application/objection may be considered and decided by the Authority concerned in accordance with law within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of six weeks or till the matter is decided by the authority concerned, whichever is earlier, no coercive action shall be taken against the petitioner.

It is made clear that in case the petitioner does not approaches the authority concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 16.12.2019

MLK